offices, right to practice professions and so on. This problem is avoided in the system of single citizenship prevalent in India.

In India, all citizens irrespective of the state in which they are born or reside enjoy the same political and civil rights of citizenship all over the country and no discrimination is made between them. However, this general rule of absence of discrimination is subject to some exceptions, viz,

1. The Parliament (under Article 16) can prescribe residence within a state or union territory as a condition for certain employments or appointments in that state or union territory, or local authority or other authority within that state or union territory. Accordingly, the Parliament enacted the Public Employment (Requirement as to Residence) Act, 1957, and thereby authorised the Government of India to prescribe residential qualification only for appointment to non-Gazetted posts in Andhra Pradesh, Himachal Pradesh, Manipur and Tripura. As this Act expired in 1974, there is no such provision for any state except Andhra Pradesh[1] and Telangana[2].

2. The Constitution (under Article 15) prohibits discrimination against any citizen on grounds of religion, race, caste, sex or place of birth and not on the ground of residence. This means that the state can provide special benefits or give preference to its residents in matters that do not come within the purview of the rights given by the Constitution to the Indian citizens. For example, a state may offer concession in fees for education to its residents.

3. The freedom of movement and residence (under Article 19) is subjected to the protection of interests of any schedule tribe. In other words, the right of outsiders to enter, reside and settle in tribal areas is restricted. Of course, this is done to protect the distinctive culture, language, customs and manners of schedule tribes and to safeguard their traditional vocation and property against exploitation.

4. Till 2019, the legislature of the erstwhile state of Jammu and Kashmir was empowered to:

    1. define the persons who are permanent residents of the state; and

    2. confer any special rights and privileges on such permanent residents as respects:

        1. employment under the state government;

        2. acquisition of immovable property in the state;

        3. settlement in the state; and

        4. right to scholarships and such other forms of aid provided by the state government.

The above provision was based on Article 35-A of the Constitution of India. This Article was inserted in the constitution by “The Constitution (Application to Jammu and Kashmir) Order, 1954”. This order was issued by the President under Article 370 of the Constitution which had provided a special status to the erstwhile state of Jammu and Kashmir. In 2019, this special status was abolished by a new presidential order known as “The Constitution (Application to Jammu and Kashmir) Order, 2019”. This order superseded the earlier 1954 order[3].

The Constitution of India, like that of Canada, has introduced the system of single citizenship and provided uniform rights (except in few cases) for the people of India to promote the feeling of fraternity